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Case Number: 21STCV08600 Hearing Date: July 17, 2026 Dept: 507

Tentative Ruling on Motion for New Trial

Judge Nicholas F. Daum, Department 507

HEARING DATE: July 17, 2026 TRIAL DATE: Apr. 21, 2026

CASE: Gustavo A. Cordoba v. S.W. School Supply Inc.

CASE NO.: 21STCV08600

Motion for New Trial

MOVING PARTY: Plaintiff Gustavo Cordoba

RESPONDING PARTY(S): Defendant S.W. School Supply Inc.

TENTATIVE RULING:

Plaintiff's motion for new trial is DENIED.

Moving Party to give notice.

DISCUSSION:

In this case, Defendant Noe Rodriguez's truck collided with Plaintiff Gustavo Cordoba's stalled vehicle. Rodriguez had been following a larger semi truck. That truck moved out of the way. At that point, Rodriguez saw Plaintiff's vehicle (stalled at night on the highway, with hazard lights on) and attempted to evade it. But Rodriguez failed in doing so. Rodriguez's truck struck Plaintiff's vehicle and injured Plaintiff.

A jury found that Rodriguez was not negligent, meaning that co-defendant S.W. School Supply Inc. (Rodriguez's employer) was also not negligent. Plaintiff now brings a motion for new trial.

The Court does not see any legal error arising from the issues raised in the motion. And even if there was legal error, the Court believes that the evidence is sufficient to support the jury's verdict. Accordingly, the Court denies the motion for new trial.

A. Legal Standards

Motions for new trial are highly technical. A new trial can be granted only for one of the reasons identified in Code of Civil Procedure section 657. The Court lacks jurisdiction to grant a motion for new trial on a basis that was not specified in the notice of intention to move for new trial. (*Wagner v. Singleton* (1982) 133 Cal.App.3d 69, 72-73.)

Here, while Plaintiff's notice of intention to move for a new trial identifies a number of statutory bases, Plaintiff's motion argues only that there was "legal error" and cites only to Code of Civil Procedure section 657 subdivisions (6) and (7). Those subdivisions allow motions for new trial based on "[i]nsufficiency of the evidence to justify the verdict" and "[e]rror in law, occurring at the trial and excepted to by the party making the application." (Code Civ. Proc., §657(6), (7).)) Accordingly, the Court addresses only those grounds for a new trial.

Under the "insufficiency of the evidence" prong, the Court acts as the so-called "thirteenth juror" (*Morden v. Hartman* (1952) 111 Cal.App.2d 751, 758.) The Court has the power to weigh evidence, and may reverse the jury's verdict if (but only if) the Court is "convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision." (Code Civ. Proc., § 657.)

Under the "error in law" prong, a legal error must be timely raised during the trial. Even if there has been an error of law, a new trial cannot be granted for that reason unless the Court is also persuaded that there has been a "miscarriage of justice." (Cal. Const. Art. 6, § 13.) "Miscarriage of justice," in this context, is what is often called "Watson error," meaning that "it is reasonably probable that a result more favorable to the appealing party would have been reached in the absence of the error." (*People v. Watson* (1956) 46 Cal.2d 818, 836.) A "probability" in this context does not mean "more likely than not" but merely a reasonable chance, more than an abstract possibility. (*Id.* at 837.)

Here, Plaintiff makes four assertions of error. As discussed below, the Court does not believe that there was legal error. And, even if there was, the error was harmless under the Watson standard and insufficient to warrant a new trial.

B. Dr. Krauss' Testimony Was Relevant and Admissible

Plaintiff's core theory of the case was that Rodriguez followed the semi truck too closely, making the accident with Plaintiff's stalled vehicle inevitable once the semi truck moved away.

At trial, the defense offered Dr. Krauss, a "human factors" expert. Among other things, Dr. Krauss testified about a peer-reviewed study he conducted concerning the average following distance of California drivers. Dr. Krauss noted that, while some "safety" driving experts (in this case and in other contexts) had opined that an appropriate following distance for a driver was approximately 3-4 seconds, his study showed in fact the overwhelming majority of California drivers on public freeways follow at a far closer distance, in ordinary traffic, on average—including many drivers following at a 170-foot, or 1.7 second distance. Here, Rodriguez's following distance (to simplify a complex story) was closer to the 1.7 second distance.

While Dr. Krauss was not a "safety" expert, he did testify to the obvious point that the overwhelming majority of such drivers who are following more closely than is often recommended are not involved in accidents—an obvious point since, thankfully, highway accidents are rare. At closing argument, defense counsel argued that this testimony from Dr. Krauss about ordinary

practice demonstrated what would be a reasonable following distance for Rodriguez. Defense counsel did this to argue against Plaintiff's theory that Rodriguez had been following the semi truck too closely.

Citing to cases including *Sheward v. Virtue* (1942) 20 Cal.2d 410, 413 (*Sheward*), *Shuff v. Irwindale Trucking Co.* (1976) 62 Cal.App.3d 180, 187-188 (*Shuff*), and *Phoenix Assurance Co. Ltd. v. Texas Holding Co.* (1927) 81 Cal.App. 61, 62 (*Phoenix*), Plaintiff argues that Dr. Krauss's testimony about average following distance was irrelevant and inadmissible.

Plaintiff's essential argument is this: according to Plaintiff, the average conduct of others is inadmissible or irrelevant to show or disprove negligence. According to Plaintiff, average habit or conduct can never be relevant to the governing standard of care. Plaintiff argues that since the only "safety" experts testified to a 3-4 second following distance as "safe," and since Dr. Krauss was (admittedly) not a "safety" expert, his testimony about average following distance is not relevant to the issue of negligence.

In the Court's view, Plaintiff's argument betrays an interesting, but fundamental, misunderstanding of the law of negligence. The most basic pillar of the law of negligence is that "the standard of conduct to which [a person] must conform to avoid being negligent is that of a reasonable man under like circumstance." (Restatement (Second) of Torts, § 283 [emphasis added]; see *Polk v. City of Los Angeles* (1945) 26 Cal.2d 519, 525 [under the law of negligence, one "is required to exercise the care that a person of ordinary prudence would exercise under the circumstances."].) As our Supreme Court has repeatedly explained, "[b]ecause application of this principle is inherently situational, the amount of care deemed reasonable in any particular case will vary, while at the same time the standard of conduct itself remains constant, i.e., due care commensurate with the risk posed by the conduct taking into consideration all relevant circumstances." (*Flowers v. Torrance Memorial Hosp. Med. Ctr.* (1994) 8 Cal.4th 992, 997 [emphasis added].)

Of course, sometimes a particular law, regulation, or legal standard makes something negligence per se. (E.g., CACI 418-421 [discussing negligence per se].) But that is not the case here. California law or regulation does not provide for a minimum following distance on the highways for drivers like Rodriguez.

Thus, in determining whether or not Rodriguez was negligent for following the semi truck too closely, the jury had to determine whether Rodriguez acted as a hypothetical ordinary prudent person would have done under similar circumstances. Learning at what distance the average person on a public highway actually follows vehicles under similar circumstances without becoming involved in an accident is obviously relevant to that determination. Indeed, it is hard to imagine evidence more relevant. To be clear, the jury was not bound to accept that evidence of average or usual conduct on the highways was proof of reasonable conduct in Rodriguez's circumstance. But evidence of average conduct was certainly relevant to the jury's determination.

A basic principle of the law of negligence is that "customary practice" is "evidence of ordinary care," even if it is not "in and of itself, ordinary care." (*Varas v. Barco Mfg. Co.* (1962) 205 Cal.App.2d 246, 259 [emphasis added].) "While the custom in the community does not necessarily establish how a reasonable person must act, it is evidence to be considered in determining the proper standard of care." (*Bullis v. Sec. Pac. Nat. Bank* (1978) 21 Cal.3d 801, 809; *Witkin, Summary of California Law* (Eleventh Edition, 2026) Torts § 1029 ["Evidence of custom or practice of others similarly situated is always admissible on the issues of due care and negligence, unless it is violative of a standard prescribed by statute"; however, "custom, while relevant, is not conclusive on the issue; i.e., it cannot make due care out of conduct that is in fact negligent"].)

Plaintiff's cases are entirely consistent with the foregoing discussion. *Sheward*, supra, 20 Cal.2d 410, 413, merely stands for the proposition (discussed above) that evidence of custom is not automatically sufficient to rebut a claim of negligence. In that case, the defendant-manufacturer argued that a verdict against them could not stand, because there was no evidence that other similarly-situated manufacturers used the test the defendant had been found negligent for not using. (*Id.* at 413-414.) Our Supreme Court rejected that argument, and reiterated the distinction given above between custom as evidence of negligence or its absence (generally admissible) and custom as conclusive proof of negligence or its absence (not allowed under California law):

Language in cases . . . referring to standards of care adopted by other manufacturers or the duty to use customary methods to detect defects, is not to be taken as requiring evidence of standards in use by others before the jury may find negligence in the particular case. Such evidence may be pertinent where the circumstances do not otherwise disclose the fact of negligence. But if, as stated, the evidence justifies the jury's finding that the defendants omitted to apply any standard of reasonable inspection or other simple test which would have revealed the defect, and that the omission constituted negligence, the negligence would not be excused because other manufacturers did not make such tests.

(Sheward, *supra*, 20 Cal. 2d 410, 414–15 [emphasis added].)

Shuff deals with an entirely distinct situation. That case dealt with a trucking accident at high rates of speed. (Shuff, *supra*, 62 Cal.App.3d 180, 186-188.) The trial court gave jury instruction BAJI 3.40, which instructed that the jury could, in situations where a person's "lawful employment" required "dangerous" work, "lessen the amount of caution required . . . by law in the exercise of ordinary care." (Id. at 187.) The trial court also gave BAJI instruction 3.16, which allowed the jury to consider custom evidence from particular industries in determining reasonableness. (Id.)

On the facts of that case, the Court of Appeal found that the trial court "could have and probably did lead the jury to believe that the standard of care in general and the speed law in particular is different for drivers of large trucks than for the ordinary motorist." (Id.) The appellate court went on to explain that "The driver of a large truck . . . should exercise a greater not lesser amount of caution than the ordinary driver and take fewer not more risks than an ordinary driver" but that the jury instructions given by the trial court would have led the jury to believe the opposite. (Id.) And, finally, the court explained that "any unique driving custom that may exist in the trucking industry would, on the public highway, have to yield to the basic speed law that limits the speed of any vehicle to that which is safe under the circumstances. When truckers share the public road with other motorists they are subject to the same standard of care as all motorists. That standard of care is not judged according to custom in the trucking business." (Id. at 188 [emphasis added].)

Put differently, Shuff holds that when a truck driver operates a vehicle on the public roads, the applicable standard of care is the same that applies to all other drivers, not some different (and more lenient) standard for truckers only. Thus, evidence of custom in the trucking business is not determinative of the standard of care. But Shuff says nothing whatsoever about evidence like that introduced by Dr. Krauss. Dr. Krauss's evidence was evidence of the custom and practice of all motorists on the highway. Shuff strongly suggests that evidence of the custom and practice of all drivers is highly relevant to questions of negligence, since that (not an industry-specific standard) is the relevant standard of care. (Indeed, if anything, Shuff suggests that Dr. Krauss's testimony was more relevant than that of Plaintiff's expert, who testified to a 3-4 second distance rule that derived largely from trucking industry practice and belief regarding safety.)

Finally, Plaintiff's reliance on Phoenix, *supra*, 81 Cal.App.61 at 71, is misplaced. First, to the extent that case could be read as requiring the exclusion of custom and practice evidence as generally irrelevant, it has been strongly disavowed by later cases. (Miller v. Midway Fishing Tool Co. (1951) 106 Cal.App.2d 612, 615-16 [rejecting Phoenix to the extent it stands for the proposition that "custom or usage is not admissible in cases where there is no contractual relationship between the parties involved" and holding that "[e]vidence of custom is received not as proof of, or as a substitute for, the substantive law's standard of conduct, which is due care, but merely to aid the jury in determining from such evidence and all the other evidence in the case whether the particular conduct of a party does or does not measure up to the legal standard."] Second, Phoenix on its own terms dealt with a situation, improper oil storage in a tank, that appeared to be inherently negligent. The Phoenix defendant argued that the custom of other oil storage companies was an "excuse" for the negligence. (Phoenix, *supra*, 81 Cal.App. at 74-75.) The court rejected that argument. Properly read, Phoenix stands only for the proposition that evidence that an inherently negligent action was customary cannot excuse, by itself, the action. (Id.) It does not go to whether evidence of custom is relevant to the jury's determination of whether there was negligence at all—and if it did, it has now been superseded by decades of clear law to the contrary.

In short, while the jury was not required to accept Dr. Krauss's testimony, there was no legal error in admitting this kind of general custom and practice evidence. Accordingly, the Court rejects Plaintiff's first claim of legal error.

C. There Was No Legal Error In Giving The Sudden Emergency Instruction

Next, Plaintiff argues that the Court should not have given the “sudden emergency” instruction (CACI 452) requested by the Defendant.[1] Plaintiff argues that the instruction was inapplicable because (on Plaintiff’s theory of the case) the alleged negligence happened before the “sudden emergency” (i.e., Plaintiff’s stalled vehicle) became apparent to Rodriguez. Plaintiff also argues that once Plaintiff’s vehicle did become apparent, Rodriguez no longer had two courses of action to take. Put differently, according to Plaintiff, while his stalled vehicle might have been an emergency, that emergency was only revealed to Rodriguez after the semi truck pulled away, at which point (according to Plaintiff, because of Rodriguez’s negligence in too closely following the semi truck) it was too late to do anything other than the course of conduct that ensued, making the sudden emergency instruction improper.

CACI 452, as given to the jury here, read as follows: “Noe Rodriguez claims that he was not negligent because he acted with reasonable care in an emergency situation. Noe Rodriguez was not negligent if he proves all of the following: (1) That there was a sudden and unexpected emergency situation in which someone was in actual or apparent danger of immediate injury; (2) That Noe Rodriguez did not cause the emergency; (3) That Noe Rodriguez acted as a reasonably careful person would have acted in similar circumstances, even if it appears later that a different course of action would have been safer.”

The Court sees no error in providing this instruction. By its own terms, the instruction allowed Plaintiff to argue precisely his theory of the case. Under element 2, Plaintiff was free to argue (and in fact, did argue) that it was Rodriguez who caused the emergency, by following the semi truck too closely, until it became too late to avoid an accident with Plaintiff. Under element 3, Plaintiff was free to argue (and in fact, did argue) that Rodriguez did not act as a reasonably careful person would have acted in a similar situation, again because he was following the semi truck too closely. Nothing in CACI 452 prevented Plaintiff from arguing his theory of the case. Nothing in CACI 452 foreclosed the jury from agreeing with Plaintiff’s theory.

More generally, the Court must give CACI 452 at a party’s request when there is substantial evidence supporting the instruction. (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 572 [“A party is entitled upon request to correct, nonargumentative instructions on every theory of the case advanced by him which is supported by substantial evidence.”].) Here, substantial evidence supported the instruction. The jury could reasonably have concluded that Rodriguez was confronted with an emergency situation (Plaintiff’s stalled vehicle), that Rodriguez did not cause the emergency (because, contra to Plaintiff’s argument, he had driven reasonably behind the semi truck), and that Rodriguez acted as a reasonably prudent person would in the face of the emergency. Thus, the Court was required to give the instruction.

Plaintiff cites to *Yates v. Morotti* (1932) 120 Cal.App.710, 716. That case (in which the Defendant who sought to invoke the sudden emergency doctrine, but had contributed to the emergency by driving recklessly while intoxicated, making it difficult to avoid the emergency) stands for nothing more than the prospect that the sudden-emergency doctrine is inapplicable when the party seeking to invoke the doctrine caused the emergency. That is exactly what CACI 452 says—the doctrine does not apply when the defendant who seeks to invoke the doctrine either “caused” the emergency or did not act as a “reasonably careful person would have acted in similar circumstances.” And, here, Plaintiff argued precisely this theory of the case, at length, to the jury—namely, that Rodriguez caused the emergency, making the sudden emergency doctrine not apply, by following too closely to the semi truck. Nothing in *Yates v. Morotti* suggests that the jury was required to accept Plaintiff’s theory of the case. And, in fact, they did not.

Plaintiff also cites to three cases in which appellate courts have held that the doctrine is inapplicable when a driver had no other course of action available to him or her at the time the emergency became apparent. (*Staggs v. Atchison, Topeka & Santa Fe Ry. Co.* (1955) 135 Cal.App.2d 492, 502-503; *Casey v. Russell* (1982) 138 Cal.App.3d 379, 386; *Anderson v. Latimer* (1985) 166 Cal.App.3d 667, 675.) The Court need not delve into these cases in detail. Plaintiffs’ cases stand simply for the proposition that the sudden emergency doctrine instruction should not be given where the undisputed evidence is that the accident was inevitable regardless of the reaction to the sudden emergency. In such a situation, the reaction to the sudden emergency is simply irrelevant.

That is not the case here. Here, as Plaintiff’s own expert testified at length, and as Plaintiff’s counsel argued at trial, Rodriguez could have seen Plaintiff’s stalled vehicle even when he was behind the semi truck, because of bends in the road. Thus, according to Plaintiff, Rodriguez could have recognized the emergency and taken steps to avoid it, including by following the semi truck at a greater distance. Plaintiff’s own theory of the case assumed that two actions were available to Rodriguez—slowing down and keeping distance once he had become aware of Plaintiff’s vehicle in the distance, or following closely behind the semi truck. Giving CACI 452 gave the jury the option of rejecting Plaintiff’s theory and finding that

Rodriguez acted appropriately in an emergency situation. Moreover, while Plaintiff did not emphasize this point in argument, and while Rodriguez testified that he could not have avoided the accident, the evidence could certainly have supported a reasonable conclusion by the jury that Rodriguez had an option to avoid the Plaintiff's vehicle even after the semi truck pulled away, i.e., that he could have turned into the freeway wall more quickly and avoided the accident. That, too, would be sufficient substantial evidence to support giving the instruction. Accordingly, from any angle, the Court rejects this argument from Plaintiff.

Finally, the Court rejects Plaintiff's argument that the instruction should not have been given because it is not "unexpected" to find a stalled vehicle in the road. This argument defies both CACI 452 and common sense. Even if relatively common, a stalled vehicle in the middle of a busy freeway at night is plainly an emergency, or at least something that a reasonable jury could conclude was an emergency. Plaintiff cites no law to the contrary.

D. There Was No Legal Error In Asking Plaintiff About His Memories Of The Incident While Excluding Evidence Of His Concussion

As all parties agree, they entered into a "high-low" stipulation that prohibited either party from pursuing evidence concerning Plaintiff's brain injury, and prohibited Plaintiff from seeking damages for that injury. This stipulation was specifically upheld by this Court (via another judicial officer). Defense questions at trial that simply asked Plaintiff for his recollections of the incident did not violate the parties' stipulation. Plaintiff does not seriously argue otherwise. Notably, Defendants' questions said nothing about a brain injury. Defendants did not ask for medical information.

Nor was evidence of a brain injury necessary to explain Plaintiffs' responses or lack of memory of the accident. The Court can take judicial notice of the common-sense conclusion that shock or a brief lack of memory after a serious accident is a highly common event and something easily understandable to a jury, even with no evidence whatsoever of a brain injury.

In short, nothing suggests that Defendants' standard and straightforward questions about the accident (which, incidentally, followed Plaintiff's counsel's solicitation of Plaintiff's testimony, including about events leading up to the accident) somehow violated the parties' stipulation. Certainly, nothing required the Court to allow Plaintiff to put on evidence of traumatic brain injury.

E. There Was No Legal Error In Allowing Dr. Krauss To Testify About "Looming"

Plaintiff also argues that the Court erred by allowing Dr. Krauss to testify about "looming." "Looming" in this sense is an optical phenomenon in which, at night, it looks to other drivers as though vehicles stalled on the road with their lights on are moving with traffic—an optical illusion. Plaintiff argues that Dr. Krauss admitted that this issue was irrelevant. Thus, says Plaintiff, the looming testimony only confused the jury.

Dr. Krauss did testify that, by the time the semi truck moved away from Rodriguez, the looming issue was no longer relevant because Rodriguez was too close to the stalled vehicle for the looming effect to be present.

Plaintiff, however, does not describe the full scope of Dr. Krauss's testimony about looming. And Plaintiff misses its purpose. The point of Dr. Krauss's testimony about looming was to say that even if Rodriguez had not been following the semi truck—even if there had been no semi truck at all—he still would not have had time to reasonably conclude that Plaintiff's vehicle was stalled in the road until he was about 300 feet away from it. That would support a conclusion that Plaintiff's theory of the case, which was that Rodriguez followed the semi truck too closely, was itself irrelevant. Rodriguez's following the semi truck too closely (even if it happened) could not have caused the accident, because Rodriguez would only have been able to react to the stalled vehicle at more or less the same distance from it that the semi truck pulled away. Thus, there was a relevant point, and an important one, behind Dr. Krauss's testimony regarding looming.

For this reason, the Court rejects Plaintiff's argument on this issue.

E. Even If There Was Legal Error, It Was Harmless Under Watson

In sum, the Court does not believe that the legal errors identified by the Plaintiff were in fact legal errors.

But even if there was error, that error would not support a new trial. It is not “reasonably probable” that result “more favorable” to Plaintiff would have occurred even in the absence of the errors Plaintiff asserts in the new trial motion. (*People v. Watson*, supra, 46 Cal.2d 818, 836.)

This is true for a very simple reason. The jury here saw a video, taken from Rodriguez’s truck, of the accident. The video showed Rodriguez traveling behind the semi truck, showed Rodriguez’s perception of the Plaintiff’s vehicle after the semi truck pulled away, and showed the accident itself.

The video did not show, on its face, that Rodriguez was closely tailgating the semi truck. The video did not show that Rodriguez acted inappropriately. Rather, the video showed what looked (at least from the perspective of the Court) to be fairly ordinary driving at night, followed by a sudden, tragic accident and an attempt to avoid it. Simply put, the video on its face did not show negligence.

To be sure, Plaintiff’s highly competent counsel made a skillful and thorough attempt to show that, despite the video, negligence occurred. Plaintiff argued at length and introduced extensive evidence regarding Rodriguez’s following of the semi truck and its consequences. Plaintiff introduced considerable evidence supporting his negligence theory. Ultimately, however, the jury was not persuaded.

Nothing suggests that if the (asserted) errors in Plaintiff’s motion had not occurred the results would have been any different. Even if Dr. Krauss had not testified to average following distance, the jury would still have had the video in place and could easily have drawn its own conclusions about appropriate speed and distance (not to mention that Plaintiff had a full opportunity to put in contrary evidence from Plaintiff’s safety expert). Even if CACI 452 had not been given, the jury still had all the same evidence in front of it from which it could find Rodriguez not negligent. Even if evidence of brain injury had occurred, the fundamental facts about liability were the same. And even if the looming testimony had not been introduced, the jury would have still had the same basic information before it about the accident. Accordingly, the Court must conclude that even if there was error, it was harmless under Watson.

For similar reasons, the Court does not in its role as the “thirteenth juror” order a new trial. The Court believes that Plaintiff’s counsel put on powerful evidence and did an excellent job with a difficult case. But, on balance, the Court was persuaded by the same evidence that ultimately persuaded the jury that no negligence occurred.

To be clear: The Court’s ruling today is in no way is meant to diminish the serious loss the Plaintiff. Mr. Cordoba suffered from this tragic accident. The Court is deeply sympathetic to his situation. But it cannot conclude that Plaintiff’s loss was caused by Rodriguez’s negligence.

CONCLUSION:

Plaintiff’s motion for new trial is DENIED.

Moving Party to give notice.

IT IS SO ORDERED.

Dated: Jul. 17, 2026 _____

Nicholas F. Daum

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

[1] In fact, CACI 452 was originally requested by both Plaintiff and Defendant, though Plaintiff later withdrew the request.